

Court No. - 3

Case :- WRIT - C No. - 11091 of 2022

Petitioner :- Jameel Ahmad

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Subodh Kumar, Saurabh Sachan

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Mukesh Kumar Singh, learned counsel for the respondent nos.1 and 2.

2. This writ petition has been filed praying for the following reliefs :

"i) To issue writ order or direction in nature of mandamus calling for records.

ii) To issue writ order or direction in nature of certiorari quashing the impugned recovery certificate dated 31.01.2022 (Annexure No.10 to this writ petition)."

3. Learned counsel for the respondent nos.1 and 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within

next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 27.5.2022

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Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Order on Time Extension Application:-

Put up tomorrow with previous papers.

Order Date :- 2.8.2022

NLY

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Counsel for Petitioner :- Subodh Kumar, Saurabh Sachan

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Order on Time Extension Application No. 02 of 2022

Heard learned counsel for the petitioner-applicant and Sri Nema Das, learned Additional Chief Standing Counsel for the State- Respondents.

After considering the submissions of the learned counsel for the parties and with their consent time for filing objection as provided in our order dated 25.07.2022, is extended by two weeks from today, subject to the payment of cost of Rs. 500/- which respondent shall deposit in High Court Legal Services Committee, High Court, Allahabad.

The application is ***disposed of.***

Order Date :- 3.8.2022

T.S.